

TENTATIVE RULING

Case: In the matter of 741 Plum Lane, Davis, CA 95616
Case No. CV-2023-2115

Hearing Date: January 14, 2026 **Department Eleven** **9:00 a.m.**

Petitioner City of Davis' request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, subds. (b), (c), (d), 453.) While the Court takes judicial notice of Exhibits A-K, the Court does not take judicial notice of Exhibit L (settlement agreement [executed on December 27, 2024]) because it is not attached to the request for judicial notice nor is it in the Court's file. (Cal. Rules of Court, rules 3.1113(l), 3.1306(c); Notice of Settlement [filed 1/7/25].)

Petitioner's unopposed petition for appointment of receiver over real property located at 741 Plum Lane, Davis, California, Assessor's Parcel Number 034-231-011 ("Property") and owned by respondent Carol Joyce is **GRANTED IN PART**. (Code Civ. Proc., § 564; Health & Saf. Code, §§ 17980.6, 17980.7, subd. (c).) The Court grants the relief requested as stated in petitioner's proposed order appointing a receiver, lodged on November 18, 2025, except for section 5(I) under the "Prohibitory Injunctions" title. Health and Safety Code section 17980.7 allows the Court to prohibit respondent from claiming a state tax deduction for the Property "in the taxable year of the initial order or notice" and "for the following year," "if the owner fails to comply within a reasonable time." (Health & Saf. Code, § 17980.7, subd. (b).) The Court finds that petitioner issued its initial order or notice to repair or abate on August 2, 2022. (RJN, Exh. B [Sanders Decl., ¶ 5].) The Court further finds that respondent failed to comply within a reasonable time with the terms of the initial order or notice to repair or abate. (Hardy Aff., ¶¶ 5-14, Exhs. L, N, O, P, Q, R; RJN Exh. B [Sanders Decl., ¶¶ 4-17].) Petitioner's proposed order prohibits respondent from claiming a state tax deduction for the Property for "2017 and all future years during the pendency of the receivership." (Proposed Order, Section 5(I), p. 10.) However, petitioner provides no documentation or authority in support of its request to prohibit respondent from claiming a state tax deduction outside of taxable years 2022 and 2023. (Health & Saf. Code, § 17980.7, subd. (b).) Additionally, this Court finds that the proffered hourly attorney billing rates claimed by petitioner are reasonable. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004 ["[t]he reasonable hourly rate is that prevailing in the community for similar work"]; Gharibian Decl., ¶¶ 13-22.) Furthermore, petitioner has established that the attorney hours expended and the costs incurred on the receivership petition are reasonable. (Gharibian Decl., ¶¶ 12, 23, Exhs. Y, Y(2), Z.) Therefore, the Court awards petitioner **\$53,978.50** in attorneys' fees and **\$2,467.16** in costs for a total award of **\$56,445.66**.

Petitioner is **DIRECTED** to lodge and serve an amended proposed order, to correct the taxable years in which respondent is prohibited from claiming a state tax deduction for the Property, by no later than **January 21, 2026**. Petitioner is also **DIRECTED** to serve a copy of the signed amended order on all parties within 10 days of its execution.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Deacon v. Lee et al.

Case No. CV-2025-0034

Hearing Date: January 14, 2026

Department Fourteen

9:00 a.m.

Defendants Kimberly Tsong-Min Lee and The Desert Law Group’s request for judicial notice as to Exhibits 3 – 5, 11, 14 – 17 and 21 – 23 is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendants request for judicial notice as to Exhibits 2 and 6 are **DENIED**. No valid legal basis was provided regarding defendants’ request as to these exhibits.

Defendants’ motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1), (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The Court finds that defendants have met their burden to show that they did not owe any duty to plaintiff. (*Budd v. Nixen* (1971) 6 Cal.3d 195, 200; *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820-821; *Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & 11 Mitchell, LLP* (2013) 219 Cal.App.4th 1299, 1308-1309; *Genisman v. Carley* (2018) 29 Cal.App.5th 45, 49; see *Responsible Citizens v. Superior Ct.* (1993) 16 Cal.App.4th 1717, 1733; *Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1684 [“...the attorney-client relationship is created by some form of contract, express or implied, formal or informal.”]; *Friedman v. Friedman* (1993) 20 Cal.App.4th 876, 887 [“Although an implied in fact contract may be inferred from the "conduct, situation or mutual relation of the parties, the very heart of this kind of agreement is an intent to promise Kane, Kane & Kritzer, Inc. v. Altagen (1980) 107 Cal.App.3d 36, 40, citation omitted [“While neither a retainer nor formal agreement is required to establish the attorney-client relationship [citation], the relationship with respect to a particular transaction is nevertheless required to create the duty of an attorney to act for his client in the transaction.”]; *Zenith Ins. Co v. O’Connor* (2007) 148 Cal.App.4th 998, 1010, citing *Fox v. Pollack* (1986) 181 Cal.App.3d 954, 959 [“A] client’s subjective belief that an attorney-client relationship exists, standing alone, cannot create such a relationship or a duty of care owed by the attorney to that plaintiff.”]; RJN, Exhibit 5; Pott Decl., ¶ 9, Exhibit 6; UMFs 5, 7 – 9, 20 – 27.)

The Court further finds that plaintiff Katrina Deacon has not satisfied her burden of production showing a triable issue of material fact. (See *Aguilar, supra*, 25 Cal.4th at pp. 850, 862.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.